

## 24STLC05308 24STLC05308

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-16

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### TENTATIVE RULING:

Plaintiff ZB, NA

dba California Bank & Trust's Motion for Attorney's Fees is denied.

### Analysis:

On July 25 2024, Plaintiff ZB, NA

dba California Bank & Trust ("Plaintiff") filed the instant action for breach of contract and declaratory relief against Defendant Ben B. Safyari ("Defendant"). Defendant filed an Answer on October 3, 2024.

Plaintiff filed a Motion for Summary

Judgment, or in the alternative, Summary Adjudication, which the Court granted on December 23, 2025. (Minute Order, 12/23/25.) Pursuant to that order, the Court entered judgment in Plaintiff's favor on March 13, 2026. Notice of the entry of judgment was served on both parties by the clerk on the same day. (Notice of Entry of Judgment, 03/13/26.)

On March 27, 2026, Plaintiff filed a memorandum of costs and the instant Motion for Attorney's Fees. The Motion was served on Defendant by first-class mail on the same day.

At the initial hearing on June 11, 2026, the Court continued the matter to allow Plaintiff to file and serve supplemental briefing and any necessary declaration regarding the propriety of recovering the attorney's fees incurred with respect to the Small Claims cases. (Minute Order, 06/11/26.) The Court ordered Plaintiff to file and serve the supplemental papers by June 18,

2026. However, no supplemental papers have been filed to date.

On June 24, 2026, Plaintiff filed a Notice of Continued Hearing on Motion, which it served on Defendant on the same day. No opposition has been filed to date.

#### Discussion

Plaintiff moves for an award of attorney's fees in the amount of \$27,072.00 and \$2,406.78 in costs pursuant to Code of Civil Procedure sections 1032 and 1033.5, and Civil Code section 1717. A prevailing party is entitled to recover costs, including attorney's fees when authorized by contract. (Code Civ. Proc., § 1032, subd. (a)(4); § 1033.5, subd. (a)(10)(A).) Civil Code section 1717 provides that reasonable attorney's fees and costs shall be awarded to the prevailing party in an action on a contract, where the contract specifically provides for attorney's fees and costs. (Civ. Code, § 1717, subd. (a).)

A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court Rule 3.1702(a).) Cal. Rules of Court Rule 8.822 states that an appeal must be filed within either (1) 30 days after service of the notice of entry of the judgment; or (2) 90 days after entry of the judgment. (Cal. Rules of Court 8.822(1).) The instant Motion was timely filed 11 days after notice of entry of the judgment on both parties.

It is undisputed that Plaintiff is the prevailing party in this action, as the party in whose favor the Court granted summary judgment was granted and judgment has been entered. (See Code Civ. Proc., § 1032, subd. (a)(4).) Accordingly, it is entitled to recover its costs under Code of Civil Procedure section 1033.5, subdivision (a). It is also entitled to recover its attorney's fees if such recovery is provided for in the contract at issue. The parties' contract provides for recovery of collection costs, including attorney's fees and legal expenses. (Motion, Exhibit List filed 10/21/25, Exh 1, p. 4 at "Collection Costs".) Therefore, Plaintiff is entitled to recover its attorney's fees in this action as the prevailing party.

Plaintiff's counsel billed its attorney's work at \$330.00 per hour, which is a very reasonable billing rate for attorneys in Southern California. (Motion, Schneider Decl., ¶4.) According to its billing

records, Plaintiff's attorneys billed 78.4 hours on this action. (Id. at ¶4 and Exh. 1.) However, the Court finds the amount billed includes items that were not part of this action. For example, on July 24, 2024, Plaintiff's counsel billed \$726.00 for 2.20 hours attending a hearing on small claims in Los Angeles Superior Court. (Motion, Schneider Decl., Exh. 1, p. 2.) A review of the 38 pages of billing records attached in support of the Motion shows that they include many references to time spent on the Small Claims cases filed by Defendants. Although the Small Claims cases were referenced by the parties in Plaintiff's Motion for Summary Judgment, or in the alternative, Summary Adjudication, the instant Motion for Attorney's Fees provides no briefing as to why attorney's fees incurred in the Small Claims cases are recoverable as attorney's fees in the instant action.

Code of Civil Procedure section 116.540

states that "a corporation may appear and participate in a small claims action only through a regular employee, or a duly appointed or elected officer or director, who is employed, appointed, or elected for purposes other than solely representing the corporation in small claims court." (Code Civ. Proc., § 116.540, subd. (b).) Furthermore, section 116.530 specifically provides that "no attorney may take part in the conduct or defense of a small claims action." (Code Civ. Proc., § 116.530, subd. (a).) This rule is subject to certain exceptions. (Code Civ. Proc., § 116.530, subds. (b), (c).)

Despite being provided with an opportunity to explain through supplemental briefing its entitlement to fees incurred on the Small Claims cases, Plaintiff has not filed any additional papers that would allow the Court to award fees for that time. Given the ubiquity of the billing entries for the Small Claims cases, the Court is unable to determine the amount of fees Plaintiff reasonably incurred in this action.

Conclusion

Therefore, Plaintiff

ZB, NA dba California Bank & Trust's Motion for Attorney's Fees is denied.

Moving

party to give notice.